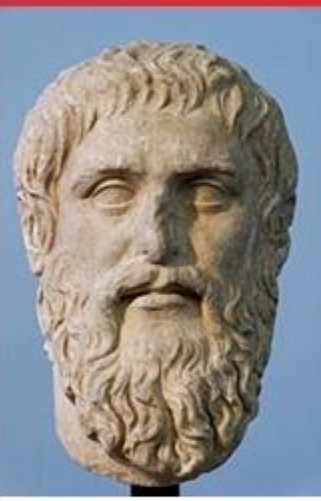
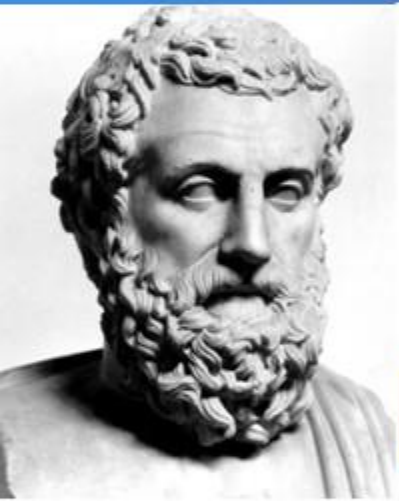


ETHICS, INTEGRITY & APTITUDE



MODULE – 34

**CODE OF CONDUCT, ETHICS
& CITIZEN CHARTER**

CODE OF CONDUCT

Objective: To prevent negative behaviour among employees and channelize their behaviour towards the goals of organization.

1 Code of Conduct emerged during British times. East India Company for 1st time introduced code of conduct for company's civil servants.

2 Company officials indulged in corruption, took gifts from local rulers and had their own private trade which brought huge amount of losses to company.

3 It was Lord Cornwallis, who for the 1st time introduced code of conduct for company servants popularly known as "Cornwallis Code".

4 Later, when the administration was transferred to British government, government added more to code of conduct for civil servants.



CODE OF CONDUCT

5 Code of conduct during the British time include:

a Prohibited civil servants from accepting bribes and gifts.

b They shouldn't have any private trade of their own.

c They can't buy shares of other companies.

d They can't purchase immovable properties in India without informing the government.

e They must submit their annual accounts of income and expenditure to government.

f They must strictly follow the orders of their superior (Hierarchy).

g Under Official Secrecy Act, 1923, they must be completely value neutral in their functioning.

**THE
OFFICIAL
SECRETS
ACT, 1923**

[Act No. 19 OF 1923]

CODE OF CONDUCT

6 After Independence, more provisions were added to civil servant conduct values:

a Civil servants can't contest elections when they are in office.

b They can't join a political party – Political neutrality.

c They can't express their political opinions in public.

d They can't canvas for a political party during elections.

e If their family members or relatives are contesting elections, they must inform the government in advance.

f People at low levels in organization can't make any information public without the permission of their superiors.



CODE OF ETHICS

- 1 By 1990s, it was realised that code of conduct prevented **negative behaviour** but **didn't promote** the **values** among **civil servants**.
- 2 Many **administrative reforms** were introduced in 1990s which mostly resulted in **failure** due to **colonial attitudes** of bureaucracy.
- 3 2nd Arc in its report on **ethics** and **governance** pointed out **weaknesses** in existing conduct rules.
- 4 **Development administration** requires different **attitudes** and **values** compared to regulatory administration.
- 5 It was felt that **code of ethics** is necessary to **achieve** objectives of **citizen empowerment**.



CODE OF ETHICS

6 Many countries around the world had come out with their code of ethics for civil servants to inculcate the values.

7 UK appointed Nolan committee to suggest code of ethics for its civil servants.

8 OECD countries had come out with separate code of Ethics.

9 UN and World bank had also suggested code of ethics for civil servants as part of good governance initiatives.

10 2nd ARC analysed the reports of all commissions and committees and suggested a public service code for civil servants in India. This public service code consists of Code of Conduct (To prevent a negative behaviour) and Code of Ethics to promote the values.

- *Rajiv Gandhi: Out of every 1RS spent on poor people, only 16 paise reach them.*
- *Two important structural weaknesses – No participation of people and No accountability.*

CITIZEN CHARTERS

1 Colonial bureaucracy with representative democracy has resulted in failure of development administration in India.

2 It was characterized by high levels of corruption, misuse and abuse of power, nepotism and favouritism, misallocation of resources, complete absence of participation of stake holders, complete absence of accountability mechanisms.

3 In UK, John Major who was the PM in early 1990s introduced Citizen Charters in their administration systems. It has two (successful) important objectives.

1. Ensuring participation of stake-holders in governments.
2. Making bureaucracy accountable for their performance.

4 In Parliamentary democracy like India, Bureaucracy is morally responsible to citizens but is not legally accountable. They are accountable to their superiors in hierarchy and to their political masters.



Citizen's Charter

CITIZEN CHARTERS

- 5 In 1997, **CMs Conference** was held in **Delhi** to discuss the issue of **corruption**.
- 6 The conference suggested implementation of **citizen charters** as one of the **solutions** to tackle the **menace of corruption**.

Citizens participate in only 5 years in front of **EVMs**, rest of time it is **Electoral dictatorship**.

➤ **Example:** District Collector is morally responsible to tackle disasters like Floods, but is **not legally accountable**. People can't punish **civil servants** if they are not efficient.



Citizen's Charter



CITIZEN CHARTERS

WHAT IS CITIZEN CHARTER?

- 1 It is a **charter of demands**. Bureaucracy through citizen charters makes itself voluntarily accountable to people.
- 2 Citizen Charters contain promises made by bureaucracy towards citizens.

FEATURES

- 1 Social audit committees are formed at local level consisting of members from NGOs, Civil society organization, private sector, beneficiary associations and stake holders themselves.

- 2 These social audit committees meet local bureaucracy to formulate citizen charters.
- Local bureaucracy shares information with social audit committees regarding money they have received from government for implementation of developmental and welfare schemes.



CITIZEN CHARTERS

FEATURES

- 3 Citizen charter provides information about the works to be completed by bureaucracy. CCs link outlays to outcomes and output.
- 4 They also provide the information about the time limit in which the work should be completed by bureaucracy.
- 5 CCs also define service standards to be achieved by bureaucracy. These service standards are defined on the basis of global standards.

- 6 Once the works are completed by bureaucracy, social audit committees evaluate performance of bureaucracy in terms of standards defined in citizen charters.



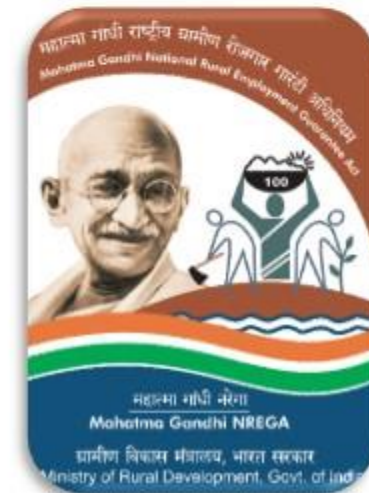
FEATURES

7

- Social audit committees then submit their reports to the government.
- Government is expected to take action on the basis of report submitted by social audit committees.
- It ensures participation of citizens in governance at lowest level and also accountability of bureaucracy to citizens.

*Example:*

- District collector received Rs.500 Crores to be spent on a MNREGA
- Calls Social audit committees in districts
- Formulate Citizen Charter
 - ✓ How many roads being constructed?
 - ✓ What is quality
 - ✓ How many schools, their quality?
 - ✓ Hospitals, their quality



CITIZEN CHARTERS

REASONS FOR FAILURE

1 Bureaucracy is voluntarily accountable in nature. Hence, it never took implementation of citizen charters compulsory.

2 Performance of bureaucracy as in implementation of citizen charters **has no impact on their career advancement** i.e., their promotions, transfers and postings are not related to their performance in implementation of citizen charters.



3

- In India, the term citizen charter has become a misnomer. They are nothing but bureaucratic charters.
- After citizen charters were recommended by CMs Conference, every government department and ministry had come out with citizen charters without involving stakeholders i.e., citizens.
- These so called citizen charters were formulated by bureaucracy on their own, defeating the very purpose of citizen charters. They ended up as bureaucratic charters.

CITIZEN CHARTERS

REASONS FOR FAILURE

4

- As rightly pointed out by 2nd ARC in its report of citizen centric administration, citizen charters in India are nothing but pious statements of noble intentions without having any practical significance.
- Service standards are never defined in an objective and quantifiable manner so that bureaucracy can be made accountable for their performance.
- For example, Railway's citizen charter mentions that their objective is to ensure safety and security for passengers but they have never defined what is safe and comfortable travel.

5

Bureaucracy never shared information especially regarding finances with social audit committees, making it difficult for them to formulate citizen charters.

6

- Most of citizen charters are formulated in English language whereas majority of citizens are familiar with vernacular language.
- Language has become one of the biggest barriers to ensure success of citizen charters.



2ND
ARC
REPORTS

REASONS FOR FAILURE

7 Social audit committees which are supposed to participate actively in formulation of citizen charters couldn't do so as they **lacked administrative experience**.

8 **Recommendations of social audit committees are only advisory in nature.** The recommendations are never implemented by state.

9 **Absence of grievance redressal mechanisms** if it is found that corruption has taken place in implementation of citizen charters, there are no grievance redressal mechanism for citizens to make bureaucracy accountable.

10

Colonial attitudes of Bureaucracy:

- In UK CCs are successful because **bureaucracy considered themselves to be true servants of citizens** even though it was a voluntary commitment, bureaucracy took it seriously and fulfilled the promises made in citizen charters.
- In India, **bureaucracy suffers from colonial attitudes**. They consider themselves as masters and not servants. This attitude has resulted in complete failure of bureaucracy to understand the significance of citizen charters in achieving objectives of citizen empowerment.

CITIZEN CHARTERS

REASONS FOR FAILURE

11 Lack of awareness among citizens in India about citizen charters.

- In India, political attitudes are dominated by emotions and sentiments. Citizens are completely unaware about their rights and it makes difficult for them to participate in governance.



12 Centralized top-down approach to development:

- In spite of many reforms that were introduced to ensure decentralised participative governance, administration in India is still characterised by dominance of central government.
- 100s of centrally sponsored schemes make it extremely difficult for people at lower levels to participate in governance.

Finances are life line of any organization.

CITIZEN CHARTERS

REFORMS NEEDED

- 1 Implementation of section-4 of RTI where in bureaucracy has to disclose information in a voluntary manner.
- 2 CAG at state level must provide training to social audit committees in administration so that these social audit committees can actively participate in formulation of citizen charters.
- 3 No ministry or department can be allowed to formulate citizen charters without participation of stake holders i.e., citizens.
- 4 Civil services conduct rules should be amended to include the performance of bureaucracy in implementation of citizen charters as the main criteria for their further career advancement.
- 5 Citizen charters must define service standards in an objective and quantifiable manner so that bureaucracy can be made accountable for its performance.



CITIZEN CHARTERS

REFORMS NEEDED

- Recommendations of social audit committees should be made legal i.e., government must submit an action taken report on the basis of recommendations of social audit committees.
- Citizen Charters should be formulated in vernacular languages.
- NGOs, CSOs and media should play proactive role to create awareness among citizens about significance of citizen charters.

- 10 Sensitivity training to bureaucracy to change their attitudes and behaviours.



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